

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 27, 2011

Due to the holiday season, the regularly scheduled December 26, 2011 meeting of the governing body of the City of Cheyenne was instead held on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Kristy Anderson, Deputy City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Mayor Kaysen read a proclamation and presented a plaque in recognition of City Treasurer Barb Dorr's retirement, thanking her for 21 years of service to the City and community. Barb Dorr expressed her appreciation to the Mayor, Council members, city staff and the community for allowing her the opportunity to serve as City Treasurer.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 12, 2011. Motion (per Consent Agenda) carried.

Mr. Brown, Mr. Valdez and Mr. Allen each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services, Radio Station KYOY FM and Scotty's Pizza Factory respectively) and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Dr. Rinne. City Treasurer Barb Dorr, Councilwoman Broyles, Police Chief Brian Kozak, Parks and Recreation Director Rick Parish and Mayor Kaysen provided information on the following vouchers: First American Title, federal loans used to assist with closing costs for CHOP program offered through the Housing and Community Development office; Laramie County Sheriff's Office - CARI, federal grant that allows officers to respond and investigate domestic violence issues; W. G. Dale Electric Co., disconnecting power at Saddle Tramps building in preparation for demolition of building, and Action Ads, Transit wall calendars that contain CTP logo purchased with federal funds. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown, Mr. Valdez and Mr. Allen returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a microbrewery permit application filed with the City Clerk's Office for Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., 301 W. 16th Street, Cheyenne, Wyoming. Dr. Stephanie Erlich spoke

in support of the application and having a microbrewery in this historic building to help keep it vibrant. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing to receive and comments and input for a microbrewery permit application filed with the City Clerk's Office for Freedoms Edge Brewing 2, LLC d/b/a Freedoms Edge Brewing Co., 1509 Pioneer Avenue, Cheyenne, Wyoming. Upon inquiry, Tim Moore, applicant, clarified the microbrewery to be located at 301 W. 16th will be a dispensing area with sales to the public as well as an area for brewing. He further advised the microbrewery permit to be located on Pioneer Ave. is specifically for a manufacturing and distribution facility, not open to the public. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of the Northeast Quarter (NE1/4) of Section 1, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming (generally located north of and adjacent to West Lincolnway and east of and adjacent to the BNSF Railroad). Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

Ordinance amending Chapter 5.08, Business License Fees, Section 5.08.010, Amusements, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code pertaining to the license fee for conducting a theater business. Reporting for Finance Committee, Mr. Valdez moved to approve on second reading, seconded by Mr. Collins. Upon inquiry, Kristy Anderson, Deputy City Clerk, reviewed the reason for reducing the annual business license fee to a flat fee of \$130.00 from \$225.00 per screen, explaining theaters now utilize digital media instead of cellulose nitrate film, which has reduced the time expended for on-site Fire Dept. inspections. Ms. Anderson further clarified the fee reflects an amount relative to the time allotted for fire inspection costs as well as administrative processing of applications. Further comments followed in reference to past ordinance changes for business licenses with similar fee structures that are now a flat annual business license fee. Motion carried. Voting "yes" -- all members of the governing body.

Ordinance creating Section 10.52.240, Parking of Oversized Vehicles, Trailers, and Semi-trailers in Residential and Mixed Use Districts, Prohibited, of Chapter 10.52, Stopping, Standing and Parking generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming -- referred to Committee of the Whole (sponsor - Ms. Broyles). Mayor Kaysen clarified this item and Agenda Item #21 (Resolution determining and prioritizing the projects to be proposed to the 1% Specific Purpose Sales Tax Committee) are being referred to the Committee of the Whole, which will meet January 4, 2011 at 6:00 p.m. in City Council Chambers and is open to the public.

Ordinance repealing Ordinance No. 3408, as amended, which adopted the "Cheyenne-Laramie County Subdivision/Development Regulations 2000," and repealing Ordinance No. 3720, as amended, which adopted the "2006 Road, Street, and Site Planning Design Standards," and repealing Title 17, Zoning, of the Cheyenne City Code 2002, in its entirety, and adopting the "Cheyenne Unified Development Code," which is attached hereto as Exhibit A and fully

incorporated herein by reference -- referred to Public Services Committee (sponsors - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen).

[CA] Resolution confirming the terms of appointment for members of the Laramie County Community Juvenile Services Joint Powers Board. Motion (per Consent Agenda) carried. (#5341)

[CA] Resolution supporting the City of Cheyenne's application for a Land and Water Conservation fund grant for the Holliday Park West Playground Expansion Project. Motion (per Consent Agenda) carried. (#5342)

[CA] Resolution designating local banks as depositories for municipal funds -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution designating the Sundays during 2012 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 A.M. the following day -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the Mayor and City Clerk to execute the attached Business Ready Community Grant and Loan Program Grant Agreement between the Wyoming Business Council and the City of Cheyenne to assist in making pedestrian and streetscape improvements to West Lincolnway, West 17th Street, Thomes Avenue and Pioneer Avenue adjacent to Block 392, Original City of Cheyenne, Wyoming -- referred to Finance Committee (sponsor - Dr. Rinne).

[CA] Resolution authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for attendance at the 2012 Saving Places Conference (State Historic Preservation Office grant) -- referred to Finance Committee (sponsor - Mr. Allen).

[CA] Resolution authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for historic building analysis and case studies of historic buildings (State Historic Preservation Office grant) -- referred to Finance Committee (sponsor - Mr. Allen).

[CA] Resolution authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for an International Code Council Class on building codes and historic buildings (State Historic Preservation Office grant) -- referred to Finance Committee (sponsor - Mr. Allen).

[CA] Resolution determining and Prioritizing City of Cheyenne projects to be proposed to the 1% Specific Purpose Sales Tax Committee for potential inclusion on the 1% Specific Purpose ballot proposition to be presented to qualified electors of Laramie County during the August 21, 2012 primary election -- referred to Committee of the Whole (sponsors - Dr. Rinne, Mr. Collins, Mayor Kaysen).

[CA] Preliminary Plat for North Cheyenne Community Park, Second Filing, a replat of North Cheyenne Community Park, Cheyenne, Wyoming (located north of and adjacent to Storey Boulevard, east of and adjacent to Chief Washakie Avenue). Motion (per Consent Agenda) carried.

Preliminary Plat for Rivett Subdivision, a portion of the Northeast Quarter (NE1/4) of Section 1, Township 13 North, Range 67 West, of the 6th P.M., Cheyenne, Wyoming (located north of and adjacent to W. Lincolnway, east of and adjacent to the BNSF Railroad). Mr. Collins moved to acknowledge receipt with staff recommendations #1 and 2, seconded by Mr. Brown. Mr. Collins moved to amend by removing staff recommendation #2 and replacing it with Planning condition #3 as follows: "Include access and utility easements on final plat before signatures are affixed to accommodate shared access and utility easements. This will require additional easements be placed on the lot adjacent to the east," seconded by Ms. Ash. Motion to amend carried. Voting "yes" -- all members of the governing body. Comments followed regarding the Long Range Missile Drive Corridor plan, location of street easements prior to final plat approval, concerns regarding lack of right-of-way, 10 acres of undeveloped property located north of Lincoln Court and access questions regarding development of the property. Main motion as amended carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash and Dr. Rinne voting "no".

Amended and Restated Lease Agreement to Contract No. 2660 between the City of Cheyenne and Safehouse/Sexual Assault Services, Inc., for the City-owned property located at 714 West Fox Farm Road, Cheyenne, Wyoming. Mr. Valdez moved to approve, seconded by Mr. Spiker. Mr. Valdez moved to amend by substitute, seconded by Mr. Spiker. Upon inquiry, Dan White, City Attorney, explained the amendment clarifies that Safehouse is responsible for all maintenance of buildings on the site and all utility charges on the site. James Perrott MacNeil questioned ownership of the buildings and whether the property is leased. Upon inquiry, Mr. White and Mayor Kaysen clarified the City owns the buildings and land. Motion to amend carried. Voting "yes" -- all members of the governing body. Discussion followed regarding clarification between Safehouse and the City on ownership of the buildings, a new lease with removal of certain clauses that are in the existing lease, approving the use of the property for 25 years with a renewal option for another 25 years, rental fee of \$1.00/year, the lease recognizing the City owns the buildings, and Safehouse continuing to provide current services. Mr. Collins moved to amend by substitute as approved by the city attorney and dated Dec. 27, 2011, seconded by Mr. Pierson. Upon inquiry, Barbara Rogers, President of the Board of Directors for Safehouse, thanked council members and the Mayor for their work on the amended lease and advised she could not speak on behalf of the Board, but they would need to review the proposed substitute for consideration. Further discussion followed regarding the renewal clause in the lease which provides the option for an additional 25 years, extending the lease to the year 2037. Dr. Rinne moved to amend Section 25 by adding language that states the agreement can be renewed at the option of lessee WITH CONSENT OF LESSOR, seconded by Mr. Allen. Mr. White clarified the language contained in that Section provides the word "may" not "shall" as stated by Dr. Rinne. The maker of the motion and second to it concurred on the language as "may". Discussion followed regarding the 50 year lease term, conditions if Safehouse should want to assign the lease, terms in the lease that protect the City, and support for the non-profit group. Upon inquiry and for clarification purposes, Kristy Anderson, Deputy City Clerk, read the amendment as proposed: "This Lease Agreement may be renewed at the option of the Lessee WITH CONSENT OF LESSOR for an additional term of twenty-five (25) years commencing December

31, 2037, provided however that Lessee shall not have the option to renew this Lease Agreement if Lessee is then in default. No further extensions or renewals of this Lease Agreement shall be valid with the express written consent of the Lessor.” With no objection raised from Council members, Mayor Kaysen requested permission to ask questions of Safehouse’s attorneys. Upon inquiry, Holly Olson, Holland and Hart, legal representative for Safehouse, advised that the proposed amendment has not been presented to the Safehouse Board for review yet and advised they were unaware of conceding to the claim of the City’s ownership of the buildings. She also mentioned that 50 years is a much longer lease term than had been discussed previously, noting it is an attractive option, and commented they would like to reach terms both sides are comfortable with by terminating the assigned lease agreement with Attention Homes and entering into a new one. Discussion continued on the length of the lease term. Mr. Brown raised a point of order regarding discussion on what would happen if Safehouse does not acknowledge the new lease. Mayor Kaysen ruled discussion should remain germane to the proposed amendment on the floor regarding Section 25 of the pending substitute. Motion to amend failed (tie vote). Voting “yes” -- Mr. Allen, Ms. Ash, Ms. Broyles, Dr. Rinne, Mr. Valdez. Voting “no” -- Mr. Brown, Mr. Collins, Mr. Pierson, Mr. Spiker and Mayor Kaysen. Upon further inquiry regarding whether the Safehouse Board may not acknowledge the proposed substitute, Mr. White advised the lease agreement entered into in 1988 with Attention Homes would still be in effect and Safehouse would be leasing on a month to month basis. Upon further inquiry, Mr. White clarified if Safehouse recommended changes to the proposed lease, those requests would have to come back before the governing body for approval. Motion to amend by substitute dated Dec. 27, 2011 carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who voted “no”. Main motion as twice amended carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen voting “no”. Mayor Kaysen clarified he supported Safehouse but his reason for voting “no” was due to concern with the length of the lease term. (#5783)

[CA] Memorandum of Understanding between Laramie County, City of Cheyenne, Cheyenne Board of Public Utilities, Cheyenne/Laramie County Board of Health and Cheyenne Regional Airport Board regarding the management of the Environmental Systems Research Institute (Esri) Enterprise License for the Cooperative Geographic Information Systems (GIS) program, and authorizing the City of Cheyenne as a software user participant in the Multi-Jurisdictional Licensing Agreement. Motion (per Consent Agenda) carried. (#5784)

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for a railroad quiet zone project at the 24th St./BNSF Crossing (2007 - 2010 1% Sales Tax) -- referred to Finance Committee

[CA] Contract Modifications No. 1, 2 and 3 to Contract No. 5740 between the City of Cheyenne, Parks and Recreation Department, and Academy Sports Turf, LLC, for additional sub soil replacement for the Pioneer Park Baseball Field-Infield Renovation Project (SLIB funding). Motion (per Consent Agenda) carried (amount not to exceed \$35,682.81). (#5740)

[CA] Contract Modification No. 1 to Contract No. 5776 between the City of Cheyenne, Public Works Department, and E/S3 Consultants, Inc. for Energy Project Consulting Services. (Energy

Development fund). Motion (per Consent Agenda) carried (amount not to exceed \$10,000.00). (#5776)

Amendment Number Five to Contract No. 4968 between the City of Cheyenne, Engineering Department, and Wyoming Department of Transportation (WYDOT) for the reconstruction of Pershing Boulevard from I-25 to Pioneer Avenue (2007 - 2010 1% Sales Tax) -- referred to Finance Committee. Mayor Kaysen advised this item was reviewed under other items for the agenda at Finance Committee due to a specific deadline that needed to be met. Mr. Valdez advised this item was discussed under other items for the agenda at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Valdez moved to approve in an amount not to exceed \$1,962,777.00, seconded by Mr. Spiker. Doug Vetter, City Engineer, thanked Council members for hearing this item under other business at the Finance Committee and explained the purpose of the amendment is to adjust the amount of funding. Motion carried. Voting "yes" -- all members of the governing body. (#4968)

[CA] Contract Modification No. 1 to Contract No. 5726 between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Cheyenne, Wyoming, for fence alignment, additional fill, crushed rock base and other changes for the East Cheyenne Greenway Phase IIIb (UPRR Underpass) Project (Greenway 1% Specific Purpose Sales & Use Tax funds) -- referred to Finance Committee.

[CA] Amendment No. 1 to Professional Services Contract No. 5624 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and AVI Professional Corporation for the Fox Farm Road Corridor Plan, Phase II (MPO Federal Planning funds) -- referred to Finance Committee.

[CA] Consideration of Bid #R-17-12 for furnishing one new 2011/2012 motor grader for the City of Cheyenne, Sanitation and Landfill Divisions (State EPA Grant & Solid Waste Management fund). Motion (per Consent Agenda) carried (Honnen Equipment, Mills, WY, in an amount not to exceed \$242,025.00).

Consideration of Bid #R-18-12 for furnishing three new 2012 four wheel/all wheel drive utility vehicles for the City of Cheyenne, Fire and Rescue and Planning Departments (2007 - 2010 1% Sales Tax and General fund). Mr. Valdez moved to accept the bid from Fremont Motors, Lander, WY, in an amount not to exceed \$64,265.23, seconded by Mr. Pierson. Motion failed. Voting "no" -- all members of the governing body.

Appointment of Terrence Bell to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-Appointments of Betsy Putnam, Ronn Jeffrey, Alfrieda Gonzales, Diane Lozano, Dr. Richard Berry, Craig Jones, Ester Davison, William Long, Gus Lopez, Ross McKelvey, Danny Glick, Jeff Lamm, Rick Robinson and Gay VanHorn to the Laramie County Community Juvenile

Services Joint Powers Board. Mr. Allen moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made that due to the New Year’s Day holiday and City offices being closed on Monday, January 2, 2012, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O’Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 3, 2012 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 4, 2012 at Noon.

Announcement was made of Re-Appointment of Paul M. Frauendienst to the Building Code Board of Appeals to be confirmed January 9, 2012.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:15 p.m.

Submitted by,

Kristy B. Anderson, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
January 9, 2012